

Ajay Gupta v. M.D., Paschimanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 September 2016 · Writ-C No. 43622 of 2016 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer questioning an electricity bill and seeking disposal of a representation was left to pursue Clause 6.5 of the U.P. Electricity Supply Code, 2005, treated as a complete machinery, without examination of the bill on merits.

FACTUAL SUMMARY

Ajay Gupta approached the Allahabad High Court challenging an electricity bill raised by Paschimanchal Vidyut Vitaran Nigam Ltd. and seeking disposal of his 16 August 2016 representation objecting to that bill. Counsel for the distribution company submitted that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provided a complete machinery for such billing grievances. After hearing both sides, the Division Bench disposed of the writ without examining whether the bill was correct.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer questions the correctness of an electricity bill and seeks disposal of a representation raising that objection, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is a complete machinery for redressal; the writ court will not examine the merits and will leave the consumer to institute appropriate proceedings under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE REPRESENTATION DATED 16 AUGUST 2016

The Court expressly declined to examine the merits of the petitioner's objections. ¶ 1